

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003730

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: NANCY DREW, ET AL

vs.

DEFENDANT: MARY CROWLEY

NATURE OF PROCEEDINGS: MOTION – JUDGMENT ON THE PLEADINGS

RULING

Defendant Mary Crowley’s (“Defendant”) Motion for Judgment on the Pleadings to Nancy Drew, by and through her Guardian Ad Litem, Robert Drew’s (“Plaintiff”) Complaint for Financial Elder Abuse is GRANTED with leave to amend.

REQUEST FOR JUDICIAL NOTICE

Plaintiff’s Request for Judicial Notice of the First Amended Petition filed in In re Estate of Nancy Drew, Marin County 12 Superior Court Case No. PR0001434 is GRANTED.

Defendant’s Requests for Judicial Notice of the Probate Petition (“Petition”) filed on August 25, 2025, In re. the Matter of the Amended and Restated Nancy B. Drew Trust, (Case No. PR0001434), is GRANTED.

Defendant’s request for Judicial Notice of the Death Certificate or official record evidencing the date of death of the decedent whose rights are purportedly asserted in the Complaint is GRANTED.

The request for Judicial Notice of the Letter to Meet and Confer is DENIED.

LEGAL STANDARD

A motion for judgment on the pleadings “may only be made on one of the following grounds: If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subd. (c)(1)(A).)

Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed. (*Alameda County Waste Management*

Authority v. Waste Connections US, Inc. (2021) 67 Cal.App.5th 1162, 1173-1174.) A motion for judgment on the pleadings is similar to a demurrer in most respects. (*Ibid.*) Except as provided in the statute governing motions for judgment on the pleadings, the rules governing demurrers apply. (*Ibid.*)

A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) Presentation of extrinsic evidence is not proper on a motion for judgment on the pleadings. (*Burnett, supra*, at p. 1063; *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.)

DISCUSSION

This Motion is made on the grounds that, taking all well-pleaded factual allegations as true, the Complaint fails as a matter of law because Plaintiff lacks standing to prosecute claims belonging to a deceased person, the causes of action are duplicative of a pending probate proceeding, and the claims are jurisdictionally improper in civil court.

This case arises out of a civil complaint originally filed on August 21, 2024, by Nancy Drew, an 85-year-old woman at the time, through her court-appointed guardian ad litem and brother, Robert Drew. The complaint alleged financial elder abuse, constructive trust, interference with expected inheritance, and other related causes of action against Defendant, based on allegations that Defendant improperly influenced and misused Nancy Drew’s trust and financial affairs while she was allegedly suffering from progressive cognitive decline.

Nancy Drew passed away on July 29, 2025, in Rye, New Hampshire, at the age of 86. (See RFJN B.)

In California, a guardian ad litem is not a party to an action but merely the representative of record of a party (*J.W. v. Superior Court* (1993) 17 Cal.App.4th 958, 964.) The guardian ad litem is appointed specifically to represent the interests of a living person — typically a minor, an incompetent person, or a conservatee — who lacks the legal capacity to represent themselves. (*Shen v. Miller* (2012) 212 Cal.App.4th 48, 61, fn. 4.)

Although the guardian ad litem loses standing upon the ward's death, the underlying civil action does not necessarily end. (Code Civ. Proc., §§ 377.20, 377.21.) However, substitution of the proper party is required. (*Id.*, §§ 377.30, 377.31.) A person seeking to continue the action as the decedent's successor in interest must execute and file an affidavit or declaration under penalty of perjury establishing their status as successor in interest or their authority to act on behalf of the successor in interest (*Id.*, § 377.32.)

In this case, based on the judicially noticeable fact that Nancy Drew passed away on July 29, 2025, the Complaint no longer states facts sufficient to allege any cause of action because the named Plaintiff no longer has standing.

For these reasons, the Motion for Judgement on the Pleadings is GRANTED with leave to amend.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004467

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M.GIL

PLAINTIFF: SARA CHEZKIAN

vs.

DEFENDANT: DANIEL L. DAMATO

NATURE OF PROCEEDINGS: MOTION - SET ASIDE/VACATE JUDGMENT

RULING

This matter was called as regularly scheduled in this department on June 26, 2026. Plaintiff Sara Chezkian appeared for argument. Marin County Superior Court Local Rules, Rule 2.10(A), (B), provides that if a party wants to present oral argument, the party must contact the Court at (415) 444 7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested. The court did not receive notification that Plaintiff Chezkian was going to appear for argument.

Ms. Chezkian patiently waited for approximately 4 hours in court for her case to be called, and the two motions she had on calendar for hearing. Brief argument was heard regarding the motion re: relief of counsel that was filed by her lawyer. As for the second motion regarding her request to set aside the judgment, the court did not confirm whether Plaintiff notified Defendant Daniel Damato that she was going to appear for argument.

The court entered an order on June 29, 2026, continuing hearing on the second motion to August 7, 2026, at 1:30 pm. to provide the defendant with an opportunity to be heard regarding the tentative ruling issued on June 25, 2026, which is repeated here for the convenience of the parties:

Motion to Set Aside and Vacate Judgment

Plaintiff Chezkian prevailed after a trial on the merits on February 24, 2026, with this Court issued a Judgment After Trial for \$267,400.00, and awarded pretrial interest of \$72,732.80 for a final judgment amount of \$340,132.80. Plaintiff filed a post-trial Motion for Recovery of Attorney's Fees and costs on March 2, 2026. The court granted the request, awarding plaintiff \$116,206.03 as recoverable litigation fees and costs.